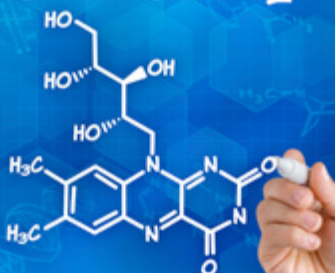




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Food and
Veterinary Office

OVERVIEW REPORT

Controls on food supplements in Member States

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OVERVIEW REPORT
ON A SERIES OF FACT FINDING MISSIONS CARRIED OUT IN
MEMBER STATES
IN 2013 AND 2014
IN ORDER TO GATHER INFORMATION
REGARDING THE CONTROLS ON FOOD SUPPLEMENTS

EXECUTIVE SUMMARY

This report provides an overview of the outcome of a series of fact finding missions carried out by the Food and Veterinary Office in five Member States (MSs) of the European Union (EU) between January 2013 and June 2014.

The series took place against the backdrop of a growing trade in food supplements in the EU, especially via the internet, and an increasing number of RASFF notifications. This demonstrates that these products can be a real risk to food safety.

The EU General Food Law applies to Food Supplements and FBOs have to ensure that their products are safe. Notification requirements are in place in most Member States and the practical implementation of these arrangements differs between Member States.

While the Commission report of 2008 concluded that it is not feasible to harmonise the use of “other substances” in FSs, some MS point out that the lack of approved harmonised lists of botanicals and maximum levels for the most risky vitamins and minerals means that the safety criteria are not transparent to traders, inspectors and consumers. Furthermore, different national provisions can be an obstacle to intra-EU trade.

A number of Member States have taken initiatives to address issues such as assessment of botanicals and the control of internet sales. Such examples of good practice could provide the basis for a discussion with Member States on practical steps which could be taken in order to improve the effectiveness of controls on food supplements.

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ABBREVIATIONS & DEFINITIONS USED IN THIS REPORT

CA(s)	Competent Authority(ies)
DG SANTE	Directorate-General for Health and Food Safety of the European Commission
EU	European Union
FBO(s)	Food Business Operator(s)
FS(s)	Food Supplement(s)
FVO	Food and Veterinary Office
MS(s)	Member State(s)
RASFF	Rapid Alert System for Food and Feed
TC(s)	Third Country(ies)

1. INTRODUCTION

Between January 2013 and June 2014, the Food and Veterinary Office (FVO) carried out a total of five fact-finding missions in Hungary, Germany, Sweden, Czech Republic and Poland. This overview report presents the main issues arising from this series.

2. OBJECTIVE OF THE SERIES OF MISSIONS

The objective of the series of missions was to gather information regarding the control systems in place for Food Supplements (FSs), in particular, the implementation of requirements of Directive 2002/46/EC on the approximation of the laws of the Member States (MSs) relating to FSs.

In terms of scope, the missions focused on the organisation and performance of the Competent Authority, (CA), in particular, on the effectiveness of the control system in place covering the whole chain of FSs.

3. LEGAL BASIS FOR THE MISSIONS

The missions were carried out in agreement with the CAs. Relevant legislation and applicable standards are listed in the Annex.

4. BACKGROUND

An earlier desk study on FSs had been undertaken by the FVO in 2009/2010. It was based on the responses of MSs to a questionnaire. The objective of the study was to gather information on the enforcement of legislation and controls in the field of FSs.

All 28 MSs responded to the questionnaire. However, some MSs were not able to provide sufficient data, especially in relation to inspection and sampling activities.

The transposition of EU legislation into national regulations was completed in all MSs. Most MSs introduced some additional national legislation. In the majority of MSs, the CAs responsible for official controls on food are also responsible for official controls in the field of FSs.

Most of the MSs reported organising training and providing some guidelines on the subject of FSs. A notification system for FSs was introduced in all but four MSs, as provided for in Article 10 of Directive 2002/46/EC.

Official controls, including sampling of FSs, were carried out in most MSs. However, in the majority of MSs, the scope of these activities was limited. The inspections were carried out at three levels: producers, market level (retailers, distributors etc.) and import points. Inspections were conducted mainly at market level. The majority of MSs with producers of FSs reported that they also carried out inspections at producer level. Samples of FSs were taken mainly for analysis of vitamin and mineral content.

In the vast majority of MSs, there are accredited laboratories designated for carrying out analysis on FSs.

Controls for FSs are included in official controls of foodstuffs in most MSs. However, the level of control differs across MSs. There are significant differences in sampling and inspection activities in MSs. The majority of MSs were able to provide specific data on inspection, sampling and registered producers of FS.

The number of Rapid Alert System for Food and Feed (RASFF) notifications on FSs (the product category also includes dietetic and fortified foods) in the EU has increased, from 116 in 2010 to 185 in 2012, 160 in 2013 and 208 in 2014. Approximately two thirds of the notifications relate to imported products: of the 368 RASFF notifications from 2013 and 2014, 150 relate to imports from the USA, 51 to imports from China and 23 to imports from India.

The most frequent RASFF notifications, 158 in 2014, concern the inclusion of unauthorised ingredients in FSs. This includes plants and plant parts (botanicals), but also synthetic pharmaceutical substances such as sibutramine, tadalafil and sildenafil. Further RASFF notifications relate to minerals, and to vitamin levels in FSs. The products involved are legally produced or imported in one MS, but may be considered a health risk and illegal when traded in another MS. In 89 of the 208 RASFF notifications of 2014 (43 %), the food supplement originated in another Member State, or was imported via another Member State. This highlights the practical problems of incomplete harmonisation of FS rules in the EU Single Market.

Other RASFF notifications relate to heavy metals, unauthorised irradiation, microbiological or chemical contamination. In the annual RASFF report of 2013 it is noted that the increase in notifications could be caused by the purchase of harmful FSs via the internet.

5. Findings and conclusions

5.1. DEFINITION OF FOOD SUPPLEMENTS

In Article 2 of Directive 2002/46/EC FSs are defined as follows: " food supplements' means foodstuffs the purpose of which is to supplement the normal diet and which are concentrated sources of nutrients or other substances with a nutritional or physiological effect, alone or in combination, marketed in dose form, namely forms such as capsules, pastilles, tablets, pills and other similar forms, sachets of powder, ampoules of liquids, drop dispensing bottles, and other similar forms of liquids and powders designed to be taken in measured small unit quantities".

The MSs visited raised the problem that there are differences between MSs in the classification of products as being either medicines or FSs. Also producers noted that some of their products are authorised as medicinal products in one MS and as FSs in another MS, and even within the same MS, the classification of products had changed over time. The different classification of products between Member States is in accordance with EU Case Law.

Conclusions

As a result of different interpretations in MSs and in accordance with EU Case Law, the same products can fall under medicine legislation in one MS and under FS legislation in another. This leads to difficulties in the EU single market, such as uncertainty on the legal requirements to market the products.

Examples of good practice

Borderline cases (Germany)

A joint commission was established by the authorities to provide guidance on borderline cases between FS and pharmaceutical products.

Borderline cases (Sweden)

The CA identifies products on the border of being a foodstuff or a pharmaceutical product. In 2011 they reviewed 1 084 cases; in 2012 the number was 1 143.

5.2. NOTIFICATIONS

Pursuant to Article 10 of Directive 2002/46/EC MSs may require the manufacturer or the person placing the product (FS) on the market in their territory, to notify the CA of that placing on the market by submitting a model of the label used for the product. At the time of the desk study, 24 MSs had a notification requirement, 4 MSs (AT, NL, SE, UK) had no notification requirement.

Four of the MSs visited had a notification system for FSs under the provisions of Article 10 of Directive 2002/46/EC. One MS in the mission series (Sweden) did not have a notification system. In one MS nutritional and health claims also had to be notified. The handling of the notifications in the countries with a notification requirement was different. In three MSs, notified FSs are checked at central level. Before accession to the EU, these MSs already had a compulsory authorisation system for FSs. The food safety and physiological effects of the chemical and botanical ingredients were checked, as were the quantity of vitamins and minerals, and the labelling, nutritional and health claims. In case of incomplete data, the notifying company may be required to provide additional information.

For the assessment of the notifications, the CA is supported by scientific institutions or a panel of experts. National positive or negative lists of botanicals and lists with national maximum levels for vitamins and minerals are used. In one MS, no lists were used, each notification was assessed case by case, with scientific information from various sources. Sources of information are, *inter alia*: the European Commission's "Orientation paper on the setting of maximum and minimum amounts for vitamins and minerals in foodstuffs", EFSA opinions, monographs (European Medicines Agency, World Health Organisation, European Commission), EFSA's "Compendium of botanicals reported to contain naturally occurring substances of possible concern for human health when used in food and food supplements".

In the fourth MS, the notifications were transferred to the regional authorities. The comprehensiveness of the checks of the notifications, if any, varied considerably between regions and was often limited to labelling and claims.

In one MS there was a significant backlog in the assessment of notifications. This was due to a high number of notifications, limited staff resources, and the exhaustive, therefore time consuming, assessment process.

The number of new notifications on FSs in 2012 for the four MSs was: 1 411, 2 588, 2 734 and 3 948.

Example of good practice

Check-list and Guidance Document (Germany)

A recent development is the provision of a check-list developed by the CA in North Rhine Westphalia based on GMP, specific to FS operators. They also issued a guidance document on the treatment of notifications on FSs, which indicates that it is obligatory to check all notifications, where possible.

Conclusions

Not all MSs have notification systems, and within the MSs operating notification systems, the handling differs considerably. This results in considerable differences between MSs with regard to the effectiveness of the control systems on FSs.

5.3. VITAMINS AND MINERALS

The setting of maximum amounts of vitamins and minerals is foreseen by Directive 2002/46/EC. In general, the CAs and FBOs met during the five missions, were in favour of maximum amounts. This would ease mutual recognition. However, associations representing companies that produce so-called “high potency” vitamin and mineral supplements are not in favour of harmonisation.

As the permitted maximum levels for some vitamins and minerals in the USA are 2-4 times higher than the maximum amounts recommended in the EU, many products with too high levels are available on the market and could easily enter the EU. This is also reflected in RASFF notifications where too high levels of vitamins and minerals frequently concern products from USA.

MSs visited stated that the absence of EU harmonised maximum levels for vitamins and minerals means that the marketing of food supplements containing high doses of certain vitamins and minerals is unregulated when national provisions are lacking. However, MSs active in notifying products with too high vitamin and minerals content to RASFF, use Regulation (EC) No. 178/2002 as legal basis, referring to recommendations of EFSA and the Scientific Committee on Foods.

Conclusions

Due to the absence of EU harmonised maximum levels for vitamins and minerals the marketing of food supplements containing high doses of certain vitamins and minerals is unregulated when national provisions are not in place. This leads to intransparency as to the acceptable levels, e.g. for products introduced from other MSs and imported from the USA or other Third Countries (TCs).

5.4. BOTANICALS

The use of substances other than vitamins or minerals (such as plants and their preparations) in the manufacture of FSs is not regulated in the EU. The principle of mutual recognition applies in the case of botanical products that are legally sold and marketed in one Member State. A Member State may prohibit the marketing only if justified by one of the public interest grounds set out in Article 36 of the Treaty on the Functioning of the European Union, such as the protection of health and life of humans. In 2008, the Commission produced a Report to the Council and to the European Parliament on the use of substances other than vitamins and minerals in food supplements. In this report, the Commission concluded that “mutual recognition is a useful instrument for facilitating the free movement of the products concerned” and that “the Community legal instruments described in this report already constitute a sufficient legislative framework for regulating this area and does not consider it opportune to lay down specific rules for substances other than vitamins or minerals for use in foodstuffs.” In the absence of harmonisation, certain MSs have adopted national rules. Some MSs consider some botanicals as medicines.

Examples of good practice

Multi-national project

France, Italy and Belgium have been at the forefront of the work on plants and their preparations. They started a project to obtain a common list of plants considered safe on the basis of their traditional use and the available scientific evidence. All three MS have national legislation in place that regulates botanicals.

Plant list (Germany)

The CA undertook a review of the safety of more than 600 plants and plant parts (botanicals). The results are published on the website with a classification: Substances not recommended for food use, substances for which restrictions are recommended or substances which cannot be evaluated due to insufficient data.

Conclusions

While the Commission concluded in 2008 that it is not feasible to harmonise the use of “other substances” in food supplements, some MSs started working on lists of botanicals, individually or together. This can result in differences in the outcome of risk assessment. Furthermore, botanicals could be considered as medicines in some MSs. As a consequence some FSs can be legally marketed in one MS but contain substances not permitted in another MS. This could affect EU intra-trade and EU imports.

5.5. CONSUMER INFORMATION

All MSs visited have general information on FSs on the website of the CA. In three MSs visited, the notifications were publicly available on the internet, but the level of detail differed. In one MS, the status (accepted, refused, or open) of the procedure was indicated. In one MS, a notified FS gets a “√” mark on the notification, published on the website of the CA, in case of no objections against the product after assessment by the CA; the producer/importer is

allowed to put this mark on the label. However, in another MS it was not permitted to refer on the label to a positive result of the assessment as it was considered to be misleading to consumers. In one MS with a notification system, the list of notified products was not publicly available.

Examples of good practice

Consumer information (Poland)

The list of all products notified during the years 2006 to 2014 (accepted, refused and open cases) by electronic means is publicly available on the CA website along with information on the company, the product name, the company form, the manufacturer, the name of the responsible entity placing the product on the Polish market and an indication of the status of the procedure. Products notified before 2006 can be found in a list on the CA intranet and are also available to the CA regional offices.

Consumer information (Hungary)

In the case of no objections the notification gets a green "✓" mark on the website of the CA. FS producers often wait to market their products until the notification procedure is finished. They often print the notification number on the label although this is not obligatory.

Conclusions

All MSs visited have at least general information on FSs on the website, however, the availability of clear meaningful specific information for the consumer on FSs varies considerably.

5.6. OFFICIAL CONTROLS

The level of knowledge on FSs at central level was good in all MSs visited, however, at regional and local level, the expertise on FSs varied from good to poor, in two of the five MSs. The level of specialisation on FSs among the inspectors met by the FVO team, varied considerably between and within the countries visited. The same was true for the number of training hours received by the inspectors. Where the level of specialisation was low, inspectors informed the FVO team that other tasks often had priority over FS controls.

In all MSs, the general procedures in place in manuals or guides for the performance of official inspections at food establishments were used for conducting official controls of FSs. In the majority of MSs, specific guidelines, instructions to the inspectors, and/or specific checklists for controls on FSs were developed, sometimes at regional or local level. In two MSs, a common approach to FS controls was missing.

Risk-based controls were carried out at manufacturers, distributors and retailers of FSs. Some inspections, observed by the FVO team, were focussed on general hygiene requirements with limited regard to specific FS issues. In one MS, inspectors had not always the notification information available, however, in three MSs the notification was used in preparation of and during the inspection. In most inspections, much attention was paid to labelling, nutritional and health claims. A number of the manufacturers visited, were fully or partly engaged in

contract manufacturing. In that case, the client was the owner of the notification, which complicated the inspection of the whole FS "chain", in particular when the client was only an office, sometimes difficult to detect by the CA.

In each MS visited, samples of FSs are taken and analysed, often for checks on labelling, nutritional and health claims. A limited proportion is analysed in a laboratory, sometimes for contaminants or microbiological contamination. The number of samples analysed for vitamin or mineral content, the strength and purity of ingredients and pharmaceutical substances is limited, although this differs between MSs. In particular, the analyses of herbal ingredients are complicated and the ability to analyse these varies widely between the laboratories visited. Also for private laboratories, performing autocontrols for FSs manufacturers, the analyses of herbal substances was challenging. The high costs of analyses for pharmaceuticals are also a limiting factor for the number of samples taken. In some MSs, these samples are not taken routinely, only in special projects.

The level of non-compliances in FS samples was reported to be relatively high compared to other foodstuffs.

Conclusions

Resources for FS controls vary considerably between and within MSs, quantitatively and qualitatively. A consistent level of control across MSs is not being achieved and a common national approach is sometimes missing.

Controls on FSs are carried out in all MSs visited, at all stages of production, distribution and sale. Efficacy of the controls was hampered by the focus on non-FS related issues and in some cases the absence of notification information. Where there is no notification system, inspectors lack criteria against which the safety of products can be assessed. Samples were mainly taken for labelling and nutritional and health claim controls. Laboratory analyses were generally limited and the full range of analytical methods, relevant for FSs, was often not available.

5.7. CONTROLS ON IMPORTS AND INTERNET SALES

All MS visited perform controls on imports of FSs. In one MS, the CA was notified by customs when FS consignments from certain Third Countries (for example India or China) arrive. The choice of these countries was based on past experience.

An increasing share of the trade in FSs is developing on internet. This trade is less transparent and more difficult to control. All MSs control internet sales of FSs. In two of the MSs visited this was the responsibility of the CA in charge of trade and consumer protection, in the other MSs, the CA for food safety was responsible. In one MS, a law was adopted to allow the CA to make anonymous test purchases to obtain the FSs, in case there was no other possibility.

Conclusions

Controls on import and internet sales are in place in all MSs visited. Some MSs use creative methods to improve the controls on internet sales.

Examples of good practice

Internet trade (Germany)

In the period 2011-2013, a 10 Lander pilot project was established to investigate internet trade of various items including FSs. Some 80 non notified FS products were found in the course of 1 200 web searches. Of those FBOs operating exclusively online, 40% were not registered. This information was communicated to the relevant Lander to follow up. There was co-operation with internet companies to gain more information on online traders. A central project unit was set up in July 2013 in the field of e-commerce and funding had been ensured to continue this work until 2015. There had been discussions with companies which provide quality marks for web based traders so that this mark would only be provided to FBOs registered under Regulation (EC) No 852/2004. Some issues that arose from this project include sampling of produce marketed online and enforcement of online traders located in TCs.

Internet trade (Sweden)

A project concerning FSs for sale on the internet was conducted by the CA in 2009-2011. One of the conclusions was that substances harmful to health can be present primarily in performance-enhancing and weight-loss supplements.

Internet trade (Czech Republic)

Specific inspections (53 in 2012 and 151 in 2013) were conducted on companies that primarily sell on the internet. Inspections were carried out at the physical premises if possible. Where this is not possible, the CA is legally permitted to anonymously purchase FSs online to get samples. In 2013, 10 such purchases were made. In addition, during comprehensive inspections, where a company has a website, a random product is selected from the website to check its notification status, health and nutrition claims.

Import controls (Czech Republic)

FSs imported from TCs for which a risk was identified are notified to the CA by Customs. This notification agreement is based on previous history of FS imports from the countries involved. The CA carries out documentary checks at the point of entry in these cases and may take samples. In 2012 and 2013, Customs informed the CA of 186 and 358 FS consignments from China and India.

Import controls (Sweden)

The CA undertook a project in 2012 to inspect packages entering the mail system from TCs. Customs seized 43 products labelled as weight-loss supplements. After analyses, 24 products appeared to be pharmaceuticals rather than FSs.

6. ACTION TAKEN BY COMMISSION SERVICES

Under the European Commission 'Better Training for Safer Food' initiative training on food composition and information has been organised in 2013 – 2014. The 15 three-day training sessions are mainly addressed to CA staff in EU MSs responsible for implementation of EU requirements related to food composition and information.

In 2008, the Commission in its report to the Council and to the European Parliament, concluded that it was not opportune to lay down specific rules for the use of substances other than vitamins and minerals in foods as the existing legislative framework, including mutual recognition and national measures, constituted a sufficient legal framework for regulation of this area. Nevertheless, the report concluded that the Commission does not rule out the possibility at a later stage, of carrying out a supplementary analysis to this report, examining the conditions for the addition of these substances to foodstuffs in general. Currently and mainly in the context of discussions on how to deal with health claims for botanicals in foods, the Commission is examining the feasibility of various options on the appropriate way forward. In this regard, the Commission services have consulted extensively with the relevant stakeholders and the Member States and will continue to do so during the examination of the options.

In 2014, the Commission launched a Fitness Check on the Regulation on General Food Law (Regulation (EC) No 178/2002) which establishes the fundamental pillars of the food and feed law. As part of this exercise, external studies are being carried out on the general part of the Regulation and on the RASFF/crisis management/emergency procedures. Once the results of the studies are finalised, the Commission will investigate whether there is any appropriate and feasible action that can be taken to tackle internet sales of foods including food supplements.

The Commission services will ensure that there is an appropriate discussion with the Member States on how to improve the effectiveness of controls on internet sales. The dissemination of best practices between the Member States will be done by means of working group meetings.

ANNEX I DETAILS OF AUDITS UNDERTAKEN

Member State	Dates of mission	SANCO reference number
Hungary	21-25/01/2013	2013-6636
Germany	10-17/09/2013	2013-6641
Sweden	04-08/11/2013	2013-6638
Czech Republic	17-21/03/2014	2014-7180
Poland	17-24/06/2014	2014-7185

ANNEX II LEGAL REFERENCES

European Legislation	Official Journal	Title
Horizontal Legislation		
Regulation (EC) No 178/2002	OJ L 31, 01/02/2002, p.1 - 24	Regulation (EC) No 178/2002 of the European Parliament and of the Council of 28 January 2002 laying down the general principles and requirements of food law, establishing the European Food Safety Authority and laying down procedures in matters of food safety.
Regulation (EC) No 882/2004	OJ L 165, 30/04/2004. Corrected and re-published in OJ L 191, 28/05/2004 p. 1 - 52	Regulation (EC) No 882/2004 of the European Parliament and of the Council of 29 April 2004 on official controls performed to ensure the verification of compliance with feed and food law, animal health and animal welfare rules.
Regulation (EC) No 852/2004	OJ L 165, 30/04/2004. Corrected and re-published in OJ L 226, 25/06/2004 p. 3 - 22	Regulation (EC) No 852/2004 of the European Parliament and of the Council of 29 April 2004 on the hygiene of foodstuffs.
Regulation (EU) 16/2011	OJ L 6, 11/01/2011, p.6 - 10	Commission Regulation (EU) No 16/2011 of 10 January 2011 laying down implementing measures for the Rapid alert system for food and feed
Legislation on Food Supplements		
Directive 2002/46/EC	OJ L 183, 10/06/2002, p.51 - 57	Directive 2002/46/EC of the European Parliament and of the Council of 10 June 2002 on the approximation of the laws of the Member States relating to food supplements.
Other applicable Legislation		
Directive 2000/13/EC	OJ L 109, 06/05/2000, p. 29 - 42	Directive 2000/13/EC of the European Parliament and of the Council of 20 March 2000 on the approximation of the laws of the Member States relating to the labelling, presentation and advertising of foodstuffs.
Regulation (EC) No 1924/2006	OJ L 404, 30/12/2006, p. 9 - 25	Regulation (EC) No 1924/2006 of the European Parliament and of the Council of 20 December 2006 on nutrition and health claims made on foods.
Regulation (EU) No 1169/2011	OJ L 304,	Regulation (EU) No 1169/2011 of the

	22.11.2011, p. 18-63	European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers, amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006 .
Commission Regulation (EC) No 2073/2005	OJ L 338, 22/12/2005, p. 1 - 26	Commission Regulation (EC) No 2073/2005 of 15 November 2005 on microbiological criteria for foodstuffs.
Directive 90/496/EEC	OJ L276, 6.10.1990, p. 40-44	Council Directive 90/496/EEC of 24 September 1990 on nutrition labelling for foodstuffs.

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